



U.S. Department
of Transportation

Research and
Special Programs
Administration

FEB 24 1995 400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11419

EXPIRATION DATE: March 31, 1995

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: General American Transportation Corporation
Chicago, Illinois
2. PURPOSE AND LIMITATION: This exemption authorizes the one-time transportation of a DOT Specification 111A100W tank car, containing a residual amount of a Class 3 material, meeting all DOT requirements except that the tank car has a defective interior heater coils, which will be secured to prevent leakage while in transportation. This exemption provides no relief from any regulations other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 174.9(b) and 174.67(k)
5. BASIS. This exemption is based on General American Transportation Corporation's application of February 22, 1995, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary to protect life and property.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/Division	Identification number	Packing Group
Naptha, solvent	UN1256	UN1256	III

7. PACKAGING(S) and SAFETY CONTROL MEASURES:
 - a. PACKAGING - Packaging prescribed is a DOT Specification 111A100W tank cars (GATX 85808) with a defective interior heater coil. The heater coil outlet caps have been secured to prevent the release of product.
 - b. TESTING - The interior heater coils of tank car GATX 85808 must be retested prior to the tank car being refilled.

c. MARKING - Tank car GATX 85808 must be marked "DOT-E 11419" in four inch letters and numerals on a contrasting background above the DOT specification number:

8. SPECIAL PROVISIONS.

a. Shipment of tank car GATX 85808 is authorized for transportation by Conrail from Sun Refining and Marketing in Toledo, Ohio, to General American East Chicago Service Center in Hammond, Indiana for cleaning and repair.

b. Interior heater coil caps must remain in place at all times while car is in transportation until reaching repair facility.

9. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

10. MODAL REQUIREMENTS:

a. The Federal Railroad Administration is to be notified if any unusual incident such loss of product. This notification should be directed to:

Federal Railroad Administration
Office of Safety, RRS-12
Hazardous Materials Division
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9252 or 366-0523

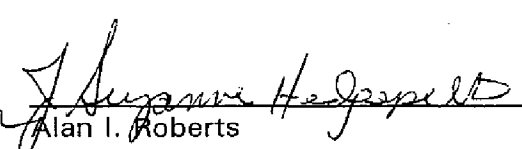
11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law 49 U.S.C. 5101 et seq.:

- All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipment made under the terms of this exemption.

Issued at Washington, D.C.:


Alan I. Roberts

Associate Administrator
for Hazardous Materials Safety

FEB 24 1995

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety,
Research and Special Programs Administration, Department of Transportation,
Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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